

# Comparision of Constitutions of Various Nations - First Edition

Rajat Kalia

August 23 , 2018

## Infrastructure

#764, 41-A, Chandigarh {TC(official)} - 160036

Shamlat (Ramgarh Sardaran), Ludhiana, Punjab

SCO 24(TF), 41-D, Chandigarh - 160036

<https://www.alphaclasses.com/>

## Educational

<https://github.com/rajatkalia1982>

<https://sourceforge.net/u/rajatkalia/profile>

<https://www.youtube.com/@rajatkaliaeducation>

## Store

<https://www.lulu.com/spotlight/rajatkalia1>

<https://amazon.com/author/rajatkalia>

## Sports

<https://www.youtube.com/@indiangamersorganization>

<https://www.facebook.com/groups/igohn>

<https://india.voobly.com/>

## Social

<https://www.goodreads.com/sardarbhagatsingh>

<https://x.com/RajatKalia1>

<https://www.linkedin.com/in/rajatkalia007/>

<https://www.facebook.com/rajatkalia007>

<https://www.instagram.com/rajatkalia007/>

<https://www.twitch.tv/rajatkalia>

<https://www.facebook.com/rajatkaliaeducation>

<https://www.researchgate.net/profile/Rajat-Kalia>

<https://www.w3profile.com/rajatkalia/>

<https://www.reddit.com/user/rajatkalia/>

## Blogs

<https://rk-e.blogspot.in/> [Physics]

<https://chem-rke.blogspot.com/> [Chemistry]  
<https://biosciences-rke.blogspot.com/> [ Bio-Sciences ]  
<https://rk-edu.blogspot.com/> [ Mathematics ]  
<https://medlife-rke.blogspot.com/> [Medical Sciences ]  
<https://computers-mke.blogspot.com/> [ Computers Engineer-  
 ing ]  
<https://ee-mke.blogspot.com/> [Electrical Engineering ]  
<https://me-mke.blogspot.com/> [ Mechanical Engineering ]  
<https://ce-mke.blogspot.com/> [ Civil Engineering ]  
<https://mke-whj.blogspot.com/> [ White Hat Junior ]  
<https://ba-xpn.blogspot.com/> [ Bachelor of Arts ]  
<https://constitution1982.blogspot.com/> [ Constitution ]  
<https://debk-mke.blogspot.com/> [ Accounting ]  
<https://comm-pke.blogspot.com/> [ Commerce ]  
<https://brigade-13.blogspot.com/> [ Air Force, India ]  
<https://battalion-7.blogspot.com/> [ Armed Forces ]  
<https://design-mke.blogspot.com/> [ Design ]  
<https://tmm18.blogspot.com/> [ Meditation ]  
 Freelancing  
<https://www.guru.com/freelancers/rajat-kalia>  
<https://www.codecademy.com/profiles/rajatkalia>  
<https://leetcode.com/u/rajatkalia1/>  
<https://www.scribd.com/user/308680256/Rajat-Kalia>

# Contents

|           |                                                      |           |
|-----------|------------------------------------------------------|-----------|
| <b>I</b>  | <b>Rights</b>                                        | <b>5</b>  |
| <b>1</b>  | <b>Fundamental Rights in “Constitution of India”</b> | <b>6</b>  |
| <b>2</b>  | <b>Bill of Rights in the “US Constitution”</b>       | <b>18</b> |
| <b>3</b>  | <b>Bill of Rights “UK Constitution”</b>              | <b>22</b> |
| <b>II</b> | <b>Duties</b>                                        | <b>39</b> |

# Rights and Duties

# Part I

# Rights

# Chapter 1

## Fundamental Rights in “Constitution of India”

### Introduction (Abstract)

12. In this Part, unless the context otherwise requires, “the State” includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India.

{  
Medal for Sikhs in Tiranga ( our tricolor Flag ) . It does represent Valour presented by Sikhs in border wars but in modern times it means Christianity and English based Education

## CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”7

or simply EDUCATION. Our fourth religion other than Hindu, Sikh, Muslim etc. We can say, that on the karma front , while saffron ( meditation ) and Nature ( Food prosperity ) stay on the outside , Milk revolution (Operation flood) and sanctity stay at the centre as White (Represented by Sikhs) while Education stays as the Blue Chakra which is a contribution of more of the rest of the world than India Alone. Asoka was the first of Sikhi's or was about to become one, so it is being called Ashok Chakra in old trend language.

However milk revolution doesn't mean that if you are in surplus of milk, you keep on putting it inside the chakra. Use other milk products too.

India is a country of Rams but the Rams are of 4 colors and the Chakra represents the Sukhi Rams. One can be in pain when at a particular place he doesn't get to answer what he doesn't already know.

}

13. (1) All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void.

(2) The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void.

(3) In this article, unless the context otherwise requires,—

(a) “law” includes any Ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law;

## *CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”*<sup>8</sup>

(b) “laws in force” includes laws passed or made by a Legislature or other competent authority in the territory of India before the commencement of this Constitution and not previously repealed, notwithstanding that any such law or any part thereof may not be then in operation either at all or in particular areas. <sup>1</sup>

### **Right to Equality (Abstract)**

14. The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.

15. (1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.

(2) No citizen shall, on grounds only of religion, race, caste, sex, place of birth or any of them, be subject to any disability, liability, restriction or condition with regard to—

(a) access to shops, public restaurants, hotels and places of public entertainment; or

(b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.

(3) Nothing in this article shall prevent the State from making any special provision for women and children.

16. (1) There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.

## *CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”<sup>9</sup>*

(2) No citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State.

(3) Nothing in this article shall prevent Parliament from making any law prescribing, in regard to a class or classes of employment or appointment to an office 1 [under the Government of, or any local or other authority within, a State or Union territory, any requirement as to residence within that State or Union territory] prior to such employment or appointment.

(4) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.

(5) Nothing in this article shall affect the operation of any law which provides that the incumbent of an office in connection with the affairs of any religious or denominational institution or any member of the governing body thereof shall be a person professing a particular religion or belonging to a particular denomination.

17. “Untouchability” is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of “Untouchability” shall be an offence punishable in accordance with law.

{ This rule states that no person of lower caste can be discriminated on the basis of mere caste. i.e. If a person is denied a job even after proper qualification and rank just due to his being of lower caste is totally against the constitutional provisions.

## CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”10

Further he cannot be denied to enter a place of worship or any public place just because of his caste strature. The practice of “Untouchability” was prevalent since old ages and the high caste society is still not ready to accept this provisions by the Indian Constitution and widespread in practice till date. The “Kanjara Jaat” amongst the Scheduled Castes is still unaware of these provisions due to illegalization of Prostitution in modern times and prefers to stay aloof from the rest of the Scheduled Caste community. While you can still see them in dance shows, they however are highly proactive in regard of caste and target other lower castes by claiming to be of higher caste themselves and saying derogatory caste statements for lower castes from high castes side themselves (in a way making mockery of the caste system and the way they think high castes would have spoken to lower castes, had there been no anti-caste discrimination law). They say they have been denied of privileges and don’t want to know about or think about the constitutional mandates moreover because one won’t be able to see literacy in the dark groves of GP road or a truck dhabha’s bartan cleaning girl. One movie “Highway” is a pictorial description of this social ill, presented in a candid way. [Thinking from the prostitute’s side, one can say that though rampant in the past, modern times have made this profession illegal by law. Even pornography too is somewhat illegal and a girl having a porn video finds it difficult to survive in society due to our cultural values and thinking. However a prostitute finds it difficult to earn bread, low amenities and bad living, it’s said that “Ram’s nam” can even save a prostitute. But it’s not due to any bad deeds or bad thinking that one can be dragged into this kind of clutches but due to bad luck

## CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”11

one can say. ]]] One of the short films on Income Tax benefits show that they find it beneficial.

In the past there was further secrement in lower castes and untouchability amongst lower castes was further practiced. i.e. a lower caste might further practice untouchability to other lower castes he thinks are lower to it. }

18. (1) No title, not being a military or academic distinction, shall be conferred by the State.

{ The word Shaheed is being misread at many places. }

(2) No citizen of India shall accept any title from any foreign State.

(3) No person who is not a citizen of India shall, while he holds any office of profit or trust under the State, accept without the consent of the President any title from any foreign State.

(4) No person holding any office of profit or trust under the State shall, without the consent of the President, accept any present, emolument, or office of any kind from or under any foreign State. Right to Freedom

19. (1) All citizens shall have the right—

(a) to freedom of speech and expression;

(b) to assemble peaceably and without arms;

(c) to form associations or unions;

(d) to move freely throughout the territory of India;

(e) to reside and settle in any part of the territory of India;

20. (1) No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the Act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence. (2) No

## *CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”*<sup>12</sup>

person shall be prosecuted and punished for the same offence more than once. (3) No person accused of any offence shall be compelled to be a witness against himself.

21. No person shall be deprived of his life or personal liberty except according to procedure established by law.

22. (1) No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult, and to be defended by, a legal practitioner of his choice.

(2) Every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the magistrate and no such person shall be detained in custody beyond the said period without the authority of a magistrate.

23. (1) Traffic in human beings and begar and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law.

(2) Nothing in this article shall prevent the State from imposing compulsory service for public purposes, and in imposing such service the State shall not make any discrimination on grounds only of religion, race, caste or class or any of them.

24. No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment.

## **Right to Freedom of Religion (Abstract)**

25. (1) Subject to public order, morality and health and to the other provisions of this Part, all persons are equally entitled to freedom of conscience and the right freely to profess, practise and propagate religion.

(2) Nothing in this article shall affect the operation of any existing law or prevent the State from making any law—

(a) regulating or restricting any economic, financial, political or other secular activity which may be associated with religious practice;

(b) providing for social welfare and reform or the throwing open of Hindu religious institutions of a public character to all classes and sections of Hindus.

26. Subject to public order, morality and health, every religious denomination or any section thereof shall have the right—

(a) to establish and maintain institutions for religious and charitable purposes; (b) to manage its own affairs in matters of religion; (c) to own and acquire movable and immovable property; and (d) to administer such property in accordance with law.

27. No person shall be compelled to pay any taxes, the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination.

28. No religious instruction shall be provided in any educational institution wholly maintained out of State funds.

### **Cultural and Educational Rights (Abstract)**

29. (1) Any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same.

(2) No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.

30. All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.

31. Rep. by the Constitution.

### **Right to Constitutional Remedies (Abstract)**

32. (1) The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed.

(2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part.

33. Parliament may, by law, determine to what extent any of the rights conferred by this Part shall, in their application to,—

(a) the members of the Armed Forces; or

## CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”<sup>15</sup>

(b) the members of the Forces charged with the maintenance of public order; or

(c) persons employed in any bureau or other organisation established by the State for purposes of intelligence or counter intelligence; or

34. Notwithstanding anything in the foregoing provisions of this Part, Parliament may by law indemnify any person in the service of the Union or of a State or any other person in respect of any act done by him in connection with the maintenance or restoration of order in any area within the territory of India where martial law was in force or validate any sentence passed, punishment inflicted, forfeiture ordered or other act done under martial law in such area.

35. Notwithstanding anything in this Constitution,—

(a) Parliament shall have, and the Legislature of a State shall not have, power to make laws

{ Note: There is another article 35A which was earlier implemented during Congress rule but has been subsequently removed during the BJP govt. regime. It emphasised at providing special status to Kashmir due to the ongoing terrorist conflict. However the present govt. wants J&K to be treated as just any other state of Indian Republic enjoying all rights and serving duties as well. This article has lead to a wave amongst staunch muslim groups who are demanding a separated Kashmir by trasfering bit by bit to Pakistan like the earlier Khalistan movement by Staunch Babbar Khalsa activists which was crushed in due time by police ( although this statement might be an exaggeration and probably those people are just exploring to learn about Article 35A and not the staunch group indeed ). A song by babbu

## *CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”*

maan in this regard says “Saada punjab maana saada kashmir oye, Ik inch chadna ni khich ti lakir oye”. Near 1984 when the movement was in full swing it had massive funding and ammunition provisions from Pakistan. Indira Gandhi did a great role in clearing the Khalistan movement hurdle but had to lose her life at the hands of a misguided Khalistan supporter ( there is a negative aspect of this , that Rajiv Gandhi started a massive campaign in Delhi to burn sikhs alive to avenge the death of his mother and Sikhs have been repeatedly asking for punishing the guilty. ) while Narendra Modi Govt. played a vital role in the article 35A amendments. Also on the diplomatic front India claims “Pakistani Occupied Kashmir” , the Portion of Kashmir on the left side of Kashmir as it’s own territory due to better communication in the UN and international support and empathy for India’s cause. So, on the international map, The whole of Kashmir is shown as part of India ( though LoC is still drawn till date. ) [ On a funny note , it can be said that India keeps it’s complete head and doesn’t give left head to Pakistan and right head to China and survives just with the central portion [of the “head”]] . Punjab has seen a long peaceful era after 1984 anti-terrorist period, but voices favouring Khalistan emerge time and again. Continuing on further lines, one can say that the Naxalite movement in Orissa is also a bit of matter of concern.

Constitution of India was implemented on 26 January, 1950 and consequently India was declared a republic. However a new date 6 November, 1949 is being conferred as the constitution implementing date while in reality it is the date of formation of Opposition in the Parliament, no wonders, the main opposition

## *CHAPTER 1. FUNDAMENTAL RIGHTS IN “CONSTITUTION OF INDIA”*

party of India is in power and publishing most govt. owned  
book versions . }

## Chapter 2

# Bill of Rights in the “US Constitution”

The U.S. Bill of Rights The Preamble to The Bill of Rights Congress of the United States begun and held at the City of New-York, on Wednesday the fourth of March, one thousand seven hundred and eighty nine.

THE Conventions of a number of the States, having at the time of their adopting the Constitution, expressed a desire, in order to prevent misconstruction or abuse of its powers, that further declaratory and restrictive clauses should be added: And as extending the ground of public confidence in the Government, will best ensure the beneficent ends of its institution.

RESOLVED by the Senate and House of Representatives of

## CHAPTER 2. BILL OF RIGHTS IN THE "US CONSTITUTION"19

the United States of America, in Congress assembled, two thirds of both Houses concurring, that the following Articles be proposed to the Legislatures of the several States, as amendments to the Constitution of the United States, all, or any of which Articles, when ratified by three fourths of the said Legislatures, to be valid to all intents and purposes, as part of the said Constitution; viz.

ARTICLES in addition to, and Amendment of the Constitution of the United States of America, proposed by Congress, and ratified by the Legislatures of the several States, pursuant to the fifth Article of the original Constitution.

Note: The following text is a transcription of the first ten amendments to the Constitution in their original form. These amendments were ratified December 15, 1791, and form what is known as the "Bill of Rights."

Amendment I Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

Amendment II A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed.

Amendment III No Soldier shall, in time of peace be quartered in any house, without the consent of the Owner, nor in time of war, but in a manner to be prescribed by law.

Amendment IV The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants

## *CHAPTER 2. BILL OF RIGHTS IN THE “US CONSTITUTION”*<sup>20</sup>

shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Amendment V No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

Amendment VI In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence.

Amendment VII In Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved, and no fact tried by a jury, shall be otherwise re-examined in any Court of the United States, than according to the rules of the common law.

Amendment VIII Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

## *CHAPTER 2. BILL OF RIGHTS IN THE “US CONSTITUTION”*<sup>21</sup>

Amendment IX The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people.

Amendment X The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

## Chapter 3

# Bill of Rights “UK Constitution”

### CHAPTER 2 RIGHTS AND FREEDOMS

Part 1: Fundamental Rights and Freedoms Division

1: The Bill of Rights

2. Right to life

2.1 Everyone’s right to life shall be protected by law.

2.2 No one shall be deprived of life intentionally.

2.3 Deprivation of life shall not be regarded as inflicted in contravention of this Article when it results from the use of force which is no more than absolutely necessary —

.1 in defence of any person from unlawful violence; or

.2 in action lawfully taken for the purpose of quelling a riot

### CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 23

or insurrection.

2.4 No one shall be condemned to death or executed.

3. Freedom from torture

No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment.

4. Freedom from slavery and forced labour

4.1 No one shall be held in slavery or servitude.

4.2 No one shall be required to perform forced or compulsory labour.

4.3 For the purpose of this Article, the expression “forced or compulsory labour” does not include —

. 1 any work required to be done in the ordinary course of detention according to Article 5 or during conditional

5. Right to liberty and security

5.1

.1 Everyone has the right to liberty and security of person.

.2 No one shall be deprived of their liberty except, on reasonable grounds and in accordance with fair procedures established by law, in the following cases — . 1 the lawful detention of a person after conviction by a competent court;

.2 the lawful arrest or detention of a person for noncompliance with the lawful order of a court or in order to secure the fulfilment of any obligation prescribed by law;

.3 the lawful arrest or detention of a person effected for the purpose of bringing them before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent their committing an offence or fleeing after having done so;

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 24*

.4 the lawful detention of persons for the prevention of the spreading of infectious diseases constituting a serious threat to public health, or of persons suffering from mental disorder where necessary for the prevention of harm to themselves or others;

.5 the lawful arrest or detention of a person to prevent their effecting an unauthorised entry into the United Kingdom or of a person against whom action is being taken with a view to deportation or extradition.

5.2 Anyone who is arrested shall, at the time of arrest, be informed in a language which they understand of the reasons for their arrest and shall be promptly informed of any charges against them.

#### 5.3

.1 It shall not be the general rule that persons awaiting trial shall be detained in custody.

.2 Anyone arrested or detained on a criminal charge shall be brought promptly before a judge or other officer authorised by law to exercise judicial power and is entitled to trial within a reasonable time or to release pending trial.

.3 Release may be subject to guarantees to appear for trial or at any other stage of the judicial proceedings.

5.4 Anyone who is deprived of liberty by arrest or detention is entitled to take proceedings before a court in order that the court may decide without delay on the lawfulness of the detention and may order their release if the detention is not lawful.

5.5 Anyone who has been the victim of unlawful arrest or detention has an enforceable right to compensation.

5.6 All persons deprived of their liberty shall be treated with humanity and with respect for the inherent dignity of the human

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 25*

person.

5.7 Accused persons in detention shall, save in exceptional circumstances, be segregated from convicted persons and shall be subject to separate treatment appropriate to their status as people who have not been convicted.

5.8 .1 Accused juvenile persons in detention shall be separated from adults and brought as speedily as possible for adjudication.

.2 Juvenile convicted persons shall be separated from adults and accorded treatment appropriate to their age and legal status.

5.9 No one shall be imprisoned merely on the ground of inability to fulfil a contractual obligation.

#### 6. Right to fair and public hearing

6.1 .1 In the determination of their civil rights and obligations or of any criminal charges against them, everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law.

.2 Judgment shall be pronounced publicly but the press and public may be excluded from all or any part of the trial to the extent strictly necessary in the opinion of the court:

. 1 in the interests of public order or national security in a democratic society;

.2 where the interests of juveniles or the protection of the private life of the parties so require; or

.3 where publicity would prejudice the interests of justice.

6.2 Everyone charged with a criminal offence is presumed innocent until proved guilty according to law.

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 26*

6.3 Everyone charged with a criminal offence has the following minimum rights:

.1 to be informed promptly in a language which they understand and in detail of the nature and cause of the accusation against them;

.2 to have adequate time and facilities for the preparation of their defence;

.3 to defend themselves in person or through legal assistance of their own choosing or, if they have not sufficient means to pay for legal assistance, to be given it free when the interests of justice so require;

.4 to examine or have examined witnesses against them and to obtain the attendance and examination of witnesses on their behalf under the same conditions as witnesses against them;

.5 to have the free assistance of an interpreter if they cannot understand or speak the language used in court;

.6 not to be compelled to testify against themselves or to confess guilt.

6.4 When a person has, by a final decision, been convicted of a criminal offence and has suffered punishment as a result of such conviction, and it is subsequently shown that there has been a miscarriage of justice, that person shall be compensated according to law.

6.5 Everyone convicted of a crime has the right to have their conviction and sentence reviewed by a higher tribunal according to law.

6.6 No one is liable to be tried or punished again for an offence for which they have already been finally convicted or acquitted in accordance with the law and penal procedure.

### CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 27

#### 7. Retrospective offences prohibited

7.1 .1 No one shall be held guilty of any criminal offence on account of any act or omission which did not constitute a criminal offence under national or international law at the time when it was committed.

.2 Nor shall a heavier penalty be imposed than the one that was applicable at the time the criminal offence was committed.

7.2 This Article does not prejudice the trial and punishment of any person for any act which constitutes the crime of genocide or a crime against humanity. 8. Respect for private and family life

8.1 Everyone has the right to respect for their private and family life, their home and their correspondence.

8.2 There shall be no interference with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society —

.1 in the interests of national security or public safety; or

.2 for the prevention of disorder or crime; or

.3 for the protection of health or morals; or .4 for the protection of the rights and freedoms of others.

#### 9. Freedom of thought

9.1. .1 Everyone has the right to freedom of thought, conscience and religion.

.2 This right includes freedom to change one's religion or belief, and freedom, either alone or in community with others and in public or private, to manifest one's religion or belief in worship, teaching, practice and observance.

9.2 Freedom to manifest one's religion or belief is subject only to such limitations as are prescribed by law and are nec-

### CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 28

essary in a democratic society — .1 in the interests of public safety; or

.2 for the preservation of public order; or .3 for the protection of health or morals, or .4 for the protection of the rights and freedoms of others.

9.3 .1 No law shall be made establishing any religion or imposing any religious observance.

.2 No religious test shall be required as a qualification for any office of public trust under any government in the United Kingdom.

#### 10. Right to education

10.1 No person shall be denied the right to education.

10.2 In the exercise of their functions in relation to education and teaching, public authorities shall respect the right of parents to ensure such education and teaching in conformity with their own religious and philosophical convictions, so far as is compatible with the provision of efficient instruction and training and the avoidance of unreasonable public expenditure.

#### 11. Freedom of expression

11.1 Everyone has the right to hold opinions without interference.

11.2 .1 Everyone has the right to freedom of expression.

.2 This right includes freedom to seek, receive and impart information and ideas of all kinds regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of their choice.

11.3 The exercise of this right carries with it special duties and responsibilities. It may therefore be subject to certain

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 29*

restrictions, but only such as are provided by law and are necessary in a democratic society —

- . 1 for respect of the rights or reputations of others; or
- .2 for the protection of national security or of public order or of public health or morals.

11.4 A requirement by law that radio or television broadcasting, or cinema enterprises, must be licensed is not inconsistent with this Article.

#### 12. Freedom of assembly and association

12.1 Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions.

12.2 No restriction shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society —

- .1 in the interests of national security, public safety or the preservation of public order; or
- .2 for the protection of public health or morals; or
- .3 for the protection of the rights and freedoms of others.

12.3 This Article does not prevent the imposition of restrictions prescribed by law and necessary in a democratic society on the exercise of this right by members of the Armed Forces or of the police or by persons charged with the administration of the state.

#### 13. Rights in respect of marriage

13.1 Everyone of marriageable age has the right both to marry and to found a family.

13.2 No marriage shall be entered into without the free and full consent of the intending spouses.

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 30*

13.3 .1 Spouses have equality of rights and responsibilities as to marriage, during marriage, and at its dissolution.

.2 In the case of dissolution, provision shall be made for the necessary protection of any children.

13.4 Every child has the right to such measures of protection as are required by their status as a minor, on the part of their family, society and public authorities. 14. Right to enjoyment of possessions

14.1 .1 Every natural or legal person is entitled to the peaceful enjoyment of their possessions.

.2 No one shall be deprived of their possessions except in the public interest and subject to the conditions provided for by law and to prompt, adequate and effective compensation.

14.2 This Article does not in any way impair the right to enforce such laws as may be necessary to control the use of property in accordance with the general interest or to secure the payment of taxes or other contributions or penalties.

15. Right to participate in public life and service

15. Every adult citizen has the right and the opportunity, without unreasonable restrictions —

.1 to take part in the conduct of public affairs directly or through freely chosen representatives;

.2 to vote and to stand for election at genuine periodic elections, which shall be by universal and equal suffrage and shall be held by secret ballot, guaranteeing the free expression of the will of the people;

.3 to participate, on general terms of equality, in public service.

16. Freedom of movement

### CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 31

16.1 Everyone lawfully within the United Kingdom has the right of liberty of movement and freedom to choose their residence within the United Kingdom.

16.2 Everyone is free to leave the United Kingdom, and everyone holding British nationality is entitled to a passport.

16.3 No restrictions shall be placed on the exercise of the rights set out in this Article other than such as are in accordance with law and are necessary in a democratic society —

.1 in the interests of national security, public safety or the preservation of public order; or

.2 for the prevention of crime or under an order imposed by a court on conviction of crime; or

.3 for the protection of health; or .4 for the protection of the rights and freedoms of others.

16.4 The rights set out in paragraph

.1 may also be subject, in particular areas, to restrictions imposed in accordance with law and justified by the public interest in a democratic society.

17. Freedom from expulsion from United Kingdom

17.1 No British National shall be expelled from the United Kingdom or deprived of the right to enter the United Kingdom.

17.2 .1 Other persons may be expelled from the United Kingdom only in pursuance of a decision reached in accordance with law.

.2 Any such persons who have been lawfully admitted to the United Kingdom shall be allowed, prior to expulsion,-

. 1 to submit reasons against expulsion; and

.2 to have their cases reviewed by, and be represented for the purpose before, the competent authority or a person or persons

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 32*

especially designated by the competent authority.

17.3 This Article does not prevent the extradition of persons, through established legal procedures, for the purpose of standing trial for a criminal offence or serving a sentence lawfully imposed on them in another jurisdiction.

#### 18. Right of asylum

18.1 Every person has the right to seek and be granted asylum in the United Kingdom in accordance with the law of the United Kingdom and international conventions, if they are being pursued for political offences.

18.2 In no case may an alien be deported or returned to a country, regardless of whether or not it is their country of origin, if in that country their right to life or personal freedom is in danger of being violated because of their race, nationality, religion, social status, or political opinions.

#### 19. Equality

19.1 Everyone has the right to recognition as a person before the law.

19.2 All persons are entitled without any discrimination to the equal protection of the law.

19.3 The equal protection of the law and the enjoyment of the rights and freedoms set out in this Bill of Rights shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth, homosexuality, disability, age, or other status.

#### Division 2: Application and interpretation

#### 20. Application of Bill of Rights

20. The Bill of Rights applies to any act or omission by

### CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 33

or on behalf of any person or body in the performance of any public function, including an omission by Government to take appropriate steps to secure compliance with any provision of the Bill of Rights.

#### 21. Scope of exceptions

21. Where the protection of any right or freedom by the Bill of Rights is subject to any restriction or qualification, that restriction or qualification — .1 has no wider effect than is strictly necessary in the circumstances; and

.2 shall not be applied for any purpose other than that for which it has been prescribed.

#### 22. Interpretation

##### 22.1 The Bill of Rights —

. 1 is intended to give effect in the United Kingdom to the International Covenant on Civil and Political Rights and the European Convention for the Protection of Human Rights and Fundamental Freedoms; and

.2 shall be interpreted and applied accordingly, but without prejudice to any rights and freedoms protected by the Bill of Rights which are more extensive than those protected by the International Covenant or the European Convention.

22.2 Judicial notice shall be taken of- . 1 the International Covenant on Civil and Political Rights and the European Convention on Human Rights;

.2 reports and expressions of views by the United Nations Human Rights Committee;

.3 reports of the European Commission of Human Rights; and

### CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 34

.4 judgments and advisory opinions of the European Court of Human Rights.

22.3 Any question as to the meaning or effect of the International Covenant or the European Convention shall be treated as a question of law and, in the case of the European Convention, shall be for determination as such in accordance with the principles laid down by, and any relevant decision of, the European Court of Human Rights.

23. Rights under other agreements

23. Nothing in this Chapter shall be interpreted as limiting or derogating from any of the human rights or fundamental freedoms which may be enjoyed under any other agreement to which the United Kingdom is a party.

24. Abuse of freedoms

24. Nothing in the Bill of Rights shall be interpreted as implying for any group or person a right to engage in any activity or perform any act aimed at the destruction of any of the rights and freedoms set out therein. Division

3: Remedies

25. Remedies

25. Without prejudice to any right to apply for judicial review, any person whose rights or freedoms protected by the Bill of Rights have been infringed or are threatened with infringement may bring civil proceedings for damages, an injunction or any other relief authorised by Rules of Court.

26. Human Rights Commission

26.1 There is established by this Constitution a Human Rights Commission —

### CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 35

. 1 the composition of which shall be determined by Act of Parliament; and

.2 the members of which shall be appointed by the Minister of Justice on the recommendation of the Public Services Commission.

26.2 The Commission has the duty to encourage an understanding and acceptance of, and compliance with, the fundamental rights and freedoms guaranteed by the Bill of Rights.

26.3 The Commission —

. 1 may investigate any act or practice which may be inconsistent with the Bill of Rights, whether on its own initiative or following a complaint; and

.2 has the appropriate powers to secure the attendance of witnesses and the production of documents.

26.4 The Commission has the power —

. 1 to assist individual complainants in legal proceedings in relation to the Bill of Rights;

.2 to institute such legal proceedings, whether or not it has received a complaint.

26.5 The Commission may challenge the validity of any provision of an Act of Parliament or of an Assembly that, in its view, is inconsistent with or in contravention of the Bill of Rights, by initiating legal proceedings in the High Court, the Court of Session or the High Court for Northern Ireland, as the case requires.

26.6 The Commission may intervene in any proceedings that involve human rights issues, where it considers it appropriate, and with the leave of the court hearing the proceedings.

26.7 The Commission may examine legislation and proposed

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 36*

legislation for the purpose of ascertaining whether it is in consistent with any of the provisions of the Bill of Rights and shall report any such inconsistency to Parliament.

26.8 The Commission shall report to Parliament on the action which, in its opinion, needs to be taken in order that there is compliance with the Bill of Rights or any relevant international instrument.

26.9 The Commission may prepare and publicise guidelines for the avoidance of acts or practices inconsistent within the Bill of Rights.

26.10 The Commission shall submit an annual report to Parliament.

#### Part 2: Social and Economic Rights

##### 27. Social and economic rights

27.1 In making provision for the social and economic welfare of the people of the United Kingdom, Parliament and the Assemblies shall be guided by the principles contained in the International Covenants and Charters to which the United Kingdom is signatory, and in particular by—

. 1 the right of workers to earn their living in an occupation freely entered upon;

.2 the right of everyone to an adequate standard of living, including adequate food, clothing and housing;

.3 the right of everyone to social security;

.4 the right of everyone to the enjoyment of the highest attainable standard of physical and mental health;

.5 the right of everyone to education;

.6 the right of workers to resort to collective action in the event of a conflict of interests, including the right to strike;

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 37*

.7 the right of every worker to enjoy satisfactory health and safety conditions in their working environment.

27.2 Parliament and the Assemblies of Scotland and Northern Ireland shall —

. 1 secure that the working of the legal system promotes justice on the basis of equality of access; and

.2 in particular, provide by law for legal aid and services to ensure that no one is prevented from securing justice by reason of economic or other disabilities.

27.3 The provisions of this Article are not enforceable in any court.

#### Part 3: Freedom of Information

##### 28. Access to official information

28.1 There is a right of access by the public to the information held by any public authority performing functions with respect to the government of the United Kingdom, a nation or a region, or to local government.

28.2 This right is subject only to such limitations as are prescribed by law and are necessary in a democratic society —

. 1 for the protection of national security;

.2 in the interests of law enforcement or the prevention and detection of crime;

.3 for the protection of personal privacy, legal privilege or commercial processes or transactions;

.4 to enable a public service to perform its constitutional functions or a public authority, when acting in the capacity of regulator, contractor or employer, to perform its functions.

28.3 Act of Parliament shall —

### *CHAPTER 3. BILL OF RIGHTS “UK CONSTITUTION” 38*

. 1 prescribe the procedures to enable the right of access to official information to be readily exercised and enforced; and

.2 make provision for the appointment, powers and procedures of a Parliamentary Commissioner for Information.

#### *28.4 The Commissioner —*

.1 shall investigate refusals of access to official information and complaints of delay or obstruction in the granting of such access; and

.2 may require public authorities to give access to official information or to compensate for unwarranted delays in giving such access.

#### *29. Use of information by public authorities*

29.1 Any person required by law to provide information to a public authority shall be informed of the purposes for which that information is required.

29.2 Any information so provided shall be used for those purposes only.

29.3 No such information shall be communicated to any other public authority unless —

.1 that communication is authorised by law; and

.2 at the time the information was required, the person from whom it was required was informed that it might be communicated to the other public authority and of the purposes for which it might be used by that other public authority.

#### *29.4 Paragraph*

.3.2 does not apply where the communication of the information is sought for the purposes of investigating fraud or crime.

## Part II

# Duties

One can say that not a single person anywhere is interested in performing the duties and even gets tired while enjoying the rights. However we'll definitely revert to duties in further editions once proper material has been collected.

# Index

## **B**

Bill of Rights in the “US Constitution”, 18

## **F**

Fundamental Rights in “Constitution of India”, 6

## **R**

Rights and Duties, 4